



MASTER SERVICES AGREEMENT

Schools, Teams, and Training Facilities

Provider Pitching Coach "U" LLC d/b/a Pearl Player Development

21965 N 31st Ave, Suite 106, Phoenix, Arizona 85027

Agreement Date: August 17, 2026

Customer: University of New Mexico

Master Services Agreement

This Master Services Agreement (the "Agreement") is entered into as of the effective date stated in an Order Form (the "Effective Date") by and between Pitching Coach "U" LLC, an Arizona limited liability company doing business as Pearl Player Development ("Pearl"), and the school, team, training facility, or other organization identified in that Order Form ("Customer"). Pearl and Customer may each be a "Party" and together the "Parties."

1. Agreement Structure and Services

1.1 Order Forms. Each signed order form, statement of work, or similar ordering document referencing this Agreement (each, an "Order Form") identifies the selected service package, fees, billing schedule, service term, and any customer-specific requirements. Each Order Form is incorporated into this Agreement.

1.2 Services. Pearl will provide the software access, programming tools, data dashboards, integrations, consulting, reports, and other services identified in the applicable Order Form (collectively, the "Services"). Features not expressly included in the Order Form are outside scope and may require an additional written agreement and fee.

1.3 Order of Precedence. If terms conflict, a signed Order Form controls only if it specifically identifies the provision of this Agreement being changed. A signed data protection addendum controls for the processing of Customer Data. This Agreement otherwise controls.

2. Term, Renewal, and Cancellation

2.1 Initial Term. Unless an Order Form states otherwise, each Order Form has a firm one-year initial term beginning on its service start date. A monthly billing schedule is a payment accommodation only and does not create a month-to-month subscription or reduce Customer's one-year payment commitment.

2.2 Manual Renewal. The Services do not renew automatically. Any renewal requires a new written Order Form or another written agreement signed by both Parties.

2.3 No Convenience Cancellation. Customer may not cancel an Order Form for convenience during its term. Early termination is permitted only as expressly stated in this Agreement or by a separate written agreement signed by both Parties. Unless Pearl agrees otherwise in writing, all committed fees remain due following an attempted early cancellation.

3. Fees, Invoicing, and Taxes

3.1 Fees. Customer will pay all fees stated in the Order Form. Annual fees are due in full upon signing unless the Order Form provides an approved monthly installment schedule. All fees are non-cancellable and nonrefundable except where this Agreement expressly provides otherwise or applicable law requires.

3.2 Monthly Installments. If monthly billing is selected, Customer remains responsible for all twelve monthly installments for the one-year term. Pearl may invoice each installment in advance.

3.3 Grace Period and Suspension. An undisputed amount is past due if not received within ten calendar days after its due date. Pearl may suspend access to the Services after that grace period until all past-due amounts are paid. Suspension does not extend the term, waive amounts due, or eliminate Customer's payment commitment.

3.4 Disputed Charges. Customer must notify Pearl in writing of a good-faith invoice dispute within ten calendar days after receipt and must timely pay all undisputed amounts. The Parties will work in good faith to resolve the dispute.

3.5 Taxes. Fees exclude sales, use, excise, and similar transaction taxes. Customer is responsible for such taxes except taxes based on Pearl's net income. If Customer claims an exemption, it will provide valid documentation before invoicing.

4. Accounts, Access, and Acceptable Use

4.1 Authorized Users. Customer may authorize its coaches, staff, administrators, and eligible players to access the Services ("Authorized Users") within the limits of the selected package. Customer is responsible for its Authorized Users and for maintaining accurate account permissions.

4.2 Account Security. Customer will safeguard credentials, promptly disable access for departed or unauthorized users, and notify Pearl without unreasonable delay of suspected unauthorized access.

4.3 Restrictions. Customer and its Authorized Users will not: (a) sell, sublicense, publicly distribute, or provide the Services to an unaffiliated third party; (b) reverse engineer, scrape, circumvent access controls, or interfere with the Services; (c) upload unlawful, infringing, malicious, or unauthorized content; (d) use the Services to violate privacy, publicity, employment, athletics, or education laws; or (e) share proprietary professional baseball or third-party data except as expressly permitted within the Services.

5. Customer Responsibilities

5.1 Data and Permissions. Customer is responsible for the accuracy and legality of Customer Data and for obtaining all notices, consents, releases, and permissions necessary for Pearl to process it, including permissions involving players, parents or guardians when applicable, employees, photographers, videographers, and third-party technology providers.

5.2 Minors. Customer represents that no child under age thirteen will be permitted to use the Services or provide personal information through the Services. For users ages thirteen through seventeen, Customer is responsible for any parental or guardian permission required by law or Customer policy.

5.3 Equipment and Data Sources. Customer is responsible for its internet access, compatible devices, source-system credentials, and rights to upload or connect data from TrackMan, Rapsodo, Yakkertech, Edgertronic, motion-capture, force-plate, or other systems. Pearl does not control the availability, accuracy, or continued compatibility of third-party systems.

6. Customer Data and Privacy

6.1 Ownership. As between the Parties, Customer retains all right, title, and interest in data, files, videos, photographs, PDFs, player notes, questionnaires, and other materials submitted to the Services by or for Customer ("Customer Data").

6.2 Limited License. Customer grants Pearl a nonexclusive, worldwide, royalty-free license during the applicable term to host, copy, transmit, display, transform, analyze, and otherwise process Customer Data only as reasonably necessary to provide, secure, support, and improve the Services and satisfy legal obligations.

6.3 Aggregated Data. Pearl may create and use statistics and analytics derived from Customer Data only when aggregated and de-identified so they do not reasonably identify Customer or an individual. Pearl will not sell identifiable Customer Data.

6.4 Education Records. To the extent Customer discloses personally identifiable information from education records subject to the Family Educational Rights and Privacy Act ("FERPA"), Pearl will act as a service provider under Customer's direction and control, use such information only to perform the contracted institutional service or function, limit access to personnel and subprocessors with a legitimate need, and not redisclose it except as authorized by Customer or permitted by law. Customer remains responsible for determining the legal basis for each disclosure and for its required notices and policies.

6.5 Security. Pearl will maintain commercially reasonable administrative, technical, and organizational safeguards designed to protect Customer Data against unauthorized access, use, alteration, or disclosure. No system is completely secure, and Pearl does not warrant absolute security.

6.6 Security Incidents. Pearl will notify Customer without unreasonable delay after confirming unauthorized access to Customer Data in Pearl's possession or control and will provide reasonably available information and cooperation appropriate to the incident. Notice is not an admission of fault or liability.

6.7 Subprocessors. Pearl may use hosting, database, email, analytics, storage, and other service providers to process Customer Data on Pearl's behalf. Pearl will require such providers to protect Customer Data consistently with their assigned functions.

7. Data Export and Deletion

7.1 Export Window. During the term and for thirty days after expiration or termination, Customer may request one reasonable export of its then-available Customer Data in a format Pearl generally supports.

7.2 Deletion. After the thirty-day export window, Pearl may delete Customer Data from active systems, subject to legally required retention, dispute preservation, and routine backup cycles. Residual backup copies may remain inaccessible until overwritten under Pearl's ordinary retention process.

8. Intellectual Property

8.1 Pearl Materials. Pearl and its licensors retain all right, title, and interest in the Services and all related software, dashboards, designs, databases, workflows, calculations, reports, exercise and drill libraries, templates, instructional materials, documentation, improvements, and know-how ("Pearl Materials"). No ownership transfers to Customer.

8.2 Customer Use Rights. During the applicable term, Pearl grants Customer a limited, nonexclusive, nontransferable right to use the Pearl Materials included in its package for Customer's internal player-development activities. Customer may provide assigned plans and reports to its own Authorized Users but may not commercially redistribute Pearl Materials or use them to create a competing product.

8.3 Feedback. If Customer provides suggestions or feedback, Pearl may use them without restriction or payment, provided Pearl does not identify Customer publicly without permission.

8.4 Third-Party Materials. Professional baseball, college, sensor, video, and other third-party data or materials remain subject to their owners' rights and applicable source restrictions. Availability may change if a source changes or ends access.

9. Confidentiality

9.1 Confidential Information. "Confidential Information" means nonpublic business, technical, financial, security, player, and product information disclosed by a Party that reasonably should be understood as confidential. Customer Data and nonpublic player information are Customer Confidential Information; nonpublic Pearl Materials are Pearl Confidential Information.

9.2 Protection and Use. The receiving Party will use Confidential Information only to perform or receive the Services, protect it using at least reasonable care, and disclose it only to personnel, professional advisers, and contractors who need access and are subject to confidentiality obligations.

9.3 Exclusions and Required Disclosure. Confidentiality obligations do not apply to information the receiving Party can document was lawfully known without restriction, independently developed, publicly available without breach, or lawfully received from another source. A legally compelled disclosure is permitted after advance notice when legally allowed and reasonable assistance in seeking protection.

10. Service Operation and Support

10.1 Standard of Performance. Pearl will provide the Services in a professional and commercially reasonable manner. Unless an Order Form expressly states a service level, support response time, data refresh frequency, or delivery date, such items are targets rather than guarantees.

10.2 Maintenance and Changes. Pearl may maintain, update, and modify the Services, including adding, replacing, or retiring features, provided Pearl does not materially reduce the core functionality of Customer's purchased package during the current term without a reasonable substitute or adjustment.

10.3 Customer Cooperation. Delivery timelines depend on Customer's timely cooperation, access, content, data, approvals, and source-system availability. Pearl is not responsible for delay caused by Customer or a third party.

11. Training, Performance, and Medical Disclaimer

The Services provide educational, informational, performance-analysis, and player-development tools. They do not constitute medical advice, diagnosis, treatment, rehabilitation, or a guarantee of performance, roster status, scholarship, draft position, injury prevention, or athletic outcome. Customer is responsible for coaching decisions, workload decisions, athlete supervision, and referral to qualified medical professionals. Customer will not use the Services as a substitute for medical judgment or emergency care.

12. Warranties and Disclaimers

12.1 Mutual Authority. Each Party represents that it has authority to enter into this Agreement.

12.2 Pearl Warranty. Pearl warrants that it will provide the Services materially in accordance with the applicable Order Form. Customer's exclusive remedy for a verified breach is re-performance of the affected Service or, if Pearl cannot reasonably cure it, termination of the affected Service and refund of prepaid fees allocable to the unused portion.

12.3 Disclaimer. Except for the express warranties in this Agreement, the Services and all outputs are provided "as is" and "as available." To the maximum extent permitted by law, each Party disclaims implied warranties, including merchantability, fitness for a particular purpose, title, and noninfringement. Pearl does not warrant uninterrupted or error-free operation, the accuracy of third-party or Customer-supplied data, or any particular athletic or business result.

13. Indemnification

13.1 By Customer. Customer will defend and indemnify Pearl and its personnel against third-party claims, damages, and reasonable costs arising from: (a) Customer Data; (b) Customer's failure to obtain required rights, notices, consents, or releases; (c) Customer's or an Authorized User's unlawful or prohibited use of the Services; or (d) Customer's coaching, training, medical, employment, eligibility, or roster decisions.

13.2 By Pearl. Pearl will defend and indemnify Customer against a third-party claim that Customer's authorized use of the Pearl-developed software directly infringes a United States patent, copyright, or trademark. Pearl may modify or replace the affected item, obtain continued use rights, or terminate the affected Service and refund prepaid fees allocable to the unused portion. This obligation does not apply to Customer Data, third-party materials, combinations not supplied by Pearl, unauthorized modifications, or use after Pearl provides a noninfringing alternative.

13.3 Process. The indemnified Party must promptly notify the indemnifying Party, allow it to control the defense and settlement, and provide reasonable cooperation. A settlement may not admit fault by or impose nonmonetary obligations on the indemnified Party without its consent.

14. Limitation of Liability

14.1 Excluded Damages. To the maximum extent permitted by law, neither Party will be liable for lost profits, lost revenue, lost opportunities, loss of goodwill, or indirect, incidental, special, exemplary, punitive, or consequential damages arising from this Agreement, even if advised they were possible.

14.2 Liability Cap. Except for Customer's payment obligations, a Party's indemnification obligations, infringement or misappropriation of the other Party's intellectual property, breach of confidentiality, or fraud, gross negligence, or willful misconduct, each Party's total aggregate liability arising from an Order Form will not exceed the fees paid or payable under that Order Form during the twelve months immediately preceding the event giving rise to the claim.

15. Termination for Cause

15.1 Material Breach. Either Party may terminate an affected Order Form if the other Party materially breaches this Agreement and fails to cure the breach within thirty days after written notice. Pearl may suspend access immediately when reasonably necessary to prevent unlawful activity, a security threat, or material harm, and may terminate for nonpayment remaining uncured ten days after the applicable due date.

15.2 Effect. Upon expiration or termination, Customer's access rights end and each Party will return or destroy the other Party's Confidential Information on request, subject to Section 7 and routine backups. Termination does not affect accrued rights or payment obligations. Sections that by their nature should survive will survive, including payment, data ownership, intellectual property, confidentiality, disclaimers, indemnification, liability limits, and general terms.

16. Publicity

Pearl will not use Customer's name, trademarks, logos, testimonials, identifiable player results, photographs, or videos in public marketing without Customer's prior written permission. Permission may be provided by email and may be limited or withdrawn prospectively.

17. General Terms

17.1 Independent Contractors. The Parties are independent contractors. This Agreement does not create employment, agency, partnership, fiduciary, franchise, or joint-venture relationships.

17.2 Notices. Formal notices must be in writing and delivered by personal delivery, nationally recognized overnight courier, certified mail, or email with confirmation of receipt to the addresses in the Order Form. Notices to Pearl must also be sent to info@pitchingcoachu.com.

17.3 Assignment. Neither Party may assign this Agreement without the other Party's prior written consent, except to an affiliate or in connection with a merger, reorganization, sale of substantially all assets, or change of control, provided the assignee assumes the assigning Party's obligations.

17.4 Force Majeure. Neither Party is liable for delay caused by events beyond its reasonable control, excluding Customer's obligation to pay amounts already due.

17.5 Governing Law and Venue. Arizona law governs without regard to conflict-of-laws principles. The state and federal courts located in Maricopa County, Arizona have exclusive jurisdiction, and each Party consents to venue there.

17.6 Entire Agreement; Amendment. This Agreement and its Order Forms are the complete agreement concerning the Services and replace prior or contemporaneous proposals and discussions on the same subject. An amendment or waiver must be in writing and signed by authorized representatives of both Parties.

17.7 Severability; Waiver. If a provision is unenforceable, it will be enforced to the greatest lawful extent and the remainder will continue. Failure to enforce a provision is not a waiver.

17.8 Counterparts and Electronic Signatures. The Parties may sign in counterparts and electronically. Electronic copies and signatures are treated as originals.

17.9 Headings. Headings are for convenience and do not affect interpretation.

Signatures

The authorized representatives below agree to this Master Services Agreement. An Order Form may be signed at the same time or separately.

PEARL
Pitching Coach "U" LLC
d/b/a Pearl Player Development
By: _____
Name: _____
Name: Jared Gaynor
Title: Owner
Date: _____

CUSTOMER
Legal Name: University of New Mexico
By: _____
Name: _____
Title: _____
Date: _____

Exhibit A — Order Form

This Order Form is governed by the Pearl Player Development Master Services Agreement between Pitching Coach "U" LLC d/b/a Pearl Player Development ("Pearl") and the Customer identified below.

Customer Information

Customer legal name: University of New Mexico

Organization type (college, high school, facility, other): College

Billing address: _____

Primary contact and title: _____

Email and phone: _____

Term and Billing

Service start date: August 17, 2026

Service end date (one year after start): August 16, 2027

☒ Annual billing — full annual fee due upon signing

☐ Approved monthly installments — twelve-month commitment; first installment due upon signing

Total committed contract value: \$4,500

Invoice email: _____

Select One Primary Package

College Packages

☐ Programming — \$3,000/year

☒ Dashboard — \$7,500/year (discounted to \$4,500/year under this Order Form)

- ☐ Programming and Dashboard — \$9,500/year
- ☐ Programming and Dashboard + Consulting — \$15,000/year

Facility Packages

- ☐ Programming Platform — \$3,000/year or 12 monthly installments of \$400 (total commitment \$4,800)
- ☐ Data Platform — \$5,000/year or 12 monthly installments of \$600 (total commitment \$7,200)
- ☐ Combined Package — \$7,500/year or 12 monthly installments of \$800 (total commitment \$9,600)

Optional Services and Adjustments

- ☐ On Campus MOCAP Analysis — \$15,000
- ☐ Pitching Development Zoom Calls — \$300/hour

Other approved service or adjustment: Standard Dashboard price: \$7,500; discount: \$3,000; final annual fee: \$4,500.

Additional fee: _____

Customer-Specific Requirements

Authorized teams/programs: _____

Expected number of coaches/admins: _____

Expected number of player users: _____

Approved data sources/integrations: _____

Order Form Signatures

By signing, each Party agrees to this Order Form and the Master Services Agreement. Monthly billing, when selected, does not permit month-to-month cancellation.

PEARL
Pitching Coach “U” LLC d/b/a Pearl Player
Development
Name: Jared Gaynor
Title: Owner
Signature: _____
Date: _____

CUSTOMER
Legal Name: University of New Mexico
Name: _____
Title: _____
Signature: _____
Date: _____

Exhibit B — Package Scope Schedule

The selected package includes the features listed below as generally available during the applicable term. Customer-specific commitments must be stated in the Order Form.

College Packages

Plan	Price	Included scope
Programming	\$3,000/year	Program and Schedule Builder: throwing calendar; workout builder and tracker; custom bullpen and drill scripts; player profiles; player notes and performance tracking; video, photo, and PDF uploads; video breakdown editor; PCU exercise and drill library; access to MLB and college data.

Plan	Price	Included scope
Dashboard	\$7,500/year	Dashboard Platform: comprehensive ball-flight and batted-ball data; custom tables and reports; leaderboards and trends; player-plan goal center; notes and performance tracking; access to MLB and AAA data. Dashboard plans also include player logins, Edgertronic integration, motion-capture integration, and pro data access.
Programming and Dashboard	\$9,500/year	All Programming and Dashboard features.
Programming and Dashboard + Consulting	\$15,000/year	All Programming and Dashboard features, plus five one-hour Zoom calls, done-for-you postgame reports, and weekly advance reports on opposing pitchers and hitters.

College À La Carte Services

Plan	Price	Included scope
On Campus MOCAP Analysis	\$15,000	Analysis for all pitchers; reports and data added to the dashboard; analysis-review Zoom call; assistance with programming.
Pitching Development Zoom Calls	\$300/hour	Pitching-development consultation delivered by Zoom at mutually scheduled times.

Facility Packages

Plan	Price	Included scope
Programming Platform	\$3,000/year or \$400/month	Unlimited players; throwing calendar; workout builder and tracker; custom bullpen and drill scripts; scheduled player questionnaires; goal tracker; weight log; player notes; video, photo, and PDF uploads; video breakdown editor.
Data Platform	\$5,000/year or \$600/month	Ball-flight and batted-ball data; custom tables and reports; leaderboards and trends; player-plan goal center; notes and performance tracking; MLB and AAA data; Edgertronic, MOCAP, and force-plate integrations.
Combined Package	\$7,500/year or \$800/month	All Programming Platform and Data Platform features, including unlimited players.

Facility monthly commitment: Monthly prices are twelve installments under a one-year commitment, producing total committed values of \$4,800, \$7,200, and \$9,600 respectively.

Scope Qualifications

- Integrations depend on compatible hardware, source-system access, data quality, and third-party availability.
- “Access” to professional, college, or third-party data means access through the Services as then lawfully available; it does not transfer ownership or unrestricted redistribution rights.
- Custom reports, integrations, onsite services, and consulting beyond the selected package require written approval and may involve additional fees.
- Pearl may improve feature names, layouts, and workflows during the term while preserving the selected package’s core functionality.

Exhibit C — School Data Protection Addendum

This School Data Protection Addendum applies when Customer is an educational institution and Pearl processes personally identifiable student or player information on Customer's behalf.

1. Roles and Instructions

Customer determines what student and player information is submitted and the purposes for which the Services are used. Pearl will process that information only on Customer's documented instructions as expressed in the Agreement, Order Form, Customer's authorized use of the Services, and applicable law.

2. Permitted Purpose

Pearl will use covered information only to provide, secure, maintain, support, and improve the contracted Services; respond to Customer requests; prevent fraud or misuse; and comply with law. Pearl will not use identifiable education-record information for unrelated advertising or sell it.

3. Access and Redisclosure

Pearl will limit access to personnel and subprocessors who need the information for the permitted purpose and are bound by confidentiality and data-protection duties. Pearl will not redisclose personally identifiable information from education records except as directed by Customer or permitted by applicable law.

4. Security and Incident Cooperation

Pearl will maintain commercially reasonable safeguards and will notify Customer without unreasonable delay after confirming unauthorized access to covered information. Pearl will reasonably cooperate with Customer's investigation and legally required notifications, considering the nature of the incident and information available to Pearl.

5. Requests and Corrections

If Pearl receives a request from a student, parent, guardian, regulator, or third party concerning covered information, Pearl may direct the requester to Customer unless law requires Pearl to respond. Pearl will reasonably assist Customer with access, correction, export, restriction, or deletion requests supported by the Services.

6. Retention and Return

Covered information is subject to the export and deletion terms in Section 7 of the Agreement. Customer is responsible for requesting any needed export within the thirty-day post-term window.

7. Customer Duties

Customer is responsible for determining whether FERPA, state student-privacy law, institutional policy, athletic-association rules, collective rights, consent requirements, or other restrictions apply; providing legally required notices; obtaining required permissions; configuring access; and instructing Pearl regarding legally required handling.

8. No Under-13 Users

Customer will not authorize children under age thirteen to use the Services or submit personal information through the Services. Customer will notify Pearl before any proposed change to that restriction so the Parties may evaluate additional legal and operational requirements.